

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 09/02/2026

Case #	Case Name	Tentative
01249934	Thomas - Probate	TENTATIVE RULING Case: Thomas - Probate 01249934 Calendar No: 1 Date: 09/02/26 MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (ROA 126) Petitioner Randall Sharp ("Petitioner"), in propria persona, moves to compel Administrator James Leestma (the "Administrator") to respond to Petitioner's document demand, set one. The motion is unopposed despite proof of service. The motion is GRANTED. The evidence before the court is that Petitioner propounded the document demand to the Administrator on 10/29/25. The parties met and conferred by telephone on 11/25/25. No response to the discovery has been served to date. Moving party need not show anything more to obtain an order compelling initial responses to a demand for production of documents. (Code of Civ. Proc. § 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906.) The Administrator is ordered to provide written responses to the document demand, set one, without objection, within 10 days of notice of this ruling, extended for method of service. The failure to comply with this order may result in evidentiary or other sanctions.

		The court notes that Petitioner served an identical document demand on the "Estate of Elaine C. Thomas," and there is an identical motion to compel responses from the Estate that is set for hearing on 9/9/26 at 1:30 PM in Department CM07. The Estate is not a separate entity. The proper procedure is to serve discovery on the Administrator for the Estate. Thus, the court ADVANCES the hearing on the Motion to Compel responses from the Estate (ROA 130) to today's date and DENIES it. The court further notes that Petitioner has filed two Motions to Deem Requests for Admission Admitted. (ROAs 112 and 118.) However, since the motions were filed as a "Notice," they were not set for hearing. To obtain a hearing date, Petitioner must resubmit the motions and pay the filing fees. Petitioner is ordered to serve a notice of this ruling on the Administrator.
		[Motion Type]
01469211	Collao – Conservatorship	TENTATIVE RULING Case: Collao – Conservatorship 01469211 Calendar No: 4 Date: 09/02/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 91) Attorney Frank O. Fox seeks to be relieved as counsel for Conservator Janet D. Allen. This motion initially came before the court on 7/1/26, at which time the motion was continued for compliance with California Rules of Court, Rule 3.1362 and Orange County Local Rule 601.21. Counsel has since fully complied. The motion to withdraw as counsel of record is GRANTED.